

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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JEAN MEME,

Plaintiff,

SUMMONS

-against-

Index No.:

Date Filed:

THE CITY OF NEW YORK, POLICE OFFICER
BRIAN GRANSHAW (Shield 18940), and JOHN
DOE, the name being fictitious and currently
unknown, a police officer employed by the
City of New York,

**Plaintiff designates QUEENS
COUNTY as place of trial**

**Basis of Venue: Where action
accrued**

Defendants.

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YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer, or if the Verified Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded below.

Dated: May 2, 2017

New York, New York

To: CITY OF NEW YORK – 100 Church Street, New York, New York 10007
BRIAN GRANSHAW, Shield 18940, 113TH Precinct, 67-02 Baisley Blvd,
Jamaica, New York 11434

Nature of the Action: false arrest and imprisonment, malicious prosecution, abuse of process, negligence, assault and battery, conversion, violation of civil rights.

Relief sought: Monetary damages

RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038
(212) 608 3103



By: Matthew Flamm

Upon failure to appear, judgment will be taken against you by default with interest from February 4, 2016 together with attorneys' fees and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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JEAN MEME,

Plaintiff,

Index No.

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
BRIAN GRANSHAW (Shield 18940), and JOHN
DOE, the name being fictitious and currently
unknown, a police officer employed by the
City of New York,

Defendants

-----X

Plaintiff, JEAN MEME (hereinafter “MEME”), by his attorneys, RUBERT & GROSS,
P.C., complaining of Defendants, THE CITY OF NEW YORK (hereinafter “CITY”) and
POLICE OFFICER BRIAN GRANSHAW (Shield 18940), and JOHN DOE, alleges as follows:

1. At all times hereinafter mentioned, Defendant CITY, was and still is a municipal
corporation organized and duly existing under and pursuant to the laws of the State of New
York.

2. At all times hereinafter mentioned, Defendant CITY, maintained a Police
Department, the employees of which act as its agents in the area of law enforcement.

3. At all times hereinafter mentioned, Defendant GRANSHAW was an employee of
Defendant CITY.

4. At all times hereinafter mentioned, Defendant DOE was an employee of
Defendant CITY.

5. At all times hereafter mentioned, Defendant GRANSHAW was acting within the
scope of his employment.

6. At all times hereafter mentioned, Defendant DOE was acting within the scope of his employment.

7. Defendant GRANSHAW is being sued individually and in his official capacity.

8. Defendant DOE is being sued individually and in his official capacity.

9. At all times hereinafter mentioned, Defendant GRANSHAW was acting under color of law.

10. At all times hereinafter mentioned, Defendant DOE was acting under color of law.

11. On or about May 3, 2016, and within ninety (90) days of accrual of Plaintiff's claims, the Plaintiff filed a Notice of Claim in the manner and mode required by law.

12. On February 2, 2017, Plaintiff was orally examined pursuant to General Municipal Law § 50-h.

13. More than 60 days have elapsed since the filing of Plaintiff's Notice of Claim and adjustment or payment thereof has been neglected or refused.

14. That this action is brought within one (1) year and ninety (90) days from the accrual of all causes of action.

15. That Plaintiff has complied with all conditions precedent applicable to the instant action.

16. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION

17. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "16" above as if fully set forth herein.

18. On February 4, 2016 at approximately 3:00 p.m., at and around Plaintiff's home at 204-01 104th Avenue in Queens, New York in the County of Queens, City and State of New York, Plaintiff was wrongfully arrested by police officer employed by the City of New York.

19. On February 4, 2016 at approximately 3:00 p.m., at and around Plaintiff's home at 204-01 104th Avenue in Queens, New York in the County of Queens, City and State of New York, Plaintiff was wrongfully arrested by Defendant GRANSHAW.

20. On February 4, 2016 at approximately 3:00 p.m., at and around Plaintiff's home at 204-01 104th Avenue in Queens, New York in the County of Queens, City and State of New York, Plaintiff was wrongfully arrested by Defendant DOE.

21. Defendant CITY, through its police officers, agents, servants and/or employees, did wrongfully detain and imprison Plaintiff without probable cause and without an arrest warrant.

22. Defendant GRANSHAW did wrongfully detain and imprison Plaintiff without probable cause and without an arrest warrant.

23. Defendant DOE did wrongfully detain and imprison Plaintiff without probable cause and without an arrest warrant.

24. In commencing and continuing said wrongful detention and imprisonment, Defendants caused Plaintiff to be wrongfully detained in violation of the laws of the State of New York and his rights under the United States Constitution.

25. Plaintiff was eventually released Desk Appearance Ticket 113-90157 charging him with criminal possession of stolen property in the fifth degree, a misdemeanor punishable by up to one year in jail.

26. The Desk Appearance Ticket commanded Plaintiff, upon threat of issuance of an arrest warrant and of arrest, to appear in Queens County Criminal Court on March 8, 2016 to defend against the false charge.

27. At the time of the unlawful imprisonment, Plaintiff had not committed any illegal act.

28. At the time of the unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.

29. At the time of Plaintiff's unlawful imprisonment, Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.

30. Defendant CITY, through its agents, servants and/or employees, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

31. Defendant GRANSHAW acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

32. Defendant DOE acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

33. Defendants willfully and wrongfully accused Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.

34. The aforesaid arrest was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest.

35. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish,

anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

36. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

37. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "36" above as if fully set forth herein.

38. That on February 4, 2016 at approximately 3:00 p.m., at and around Plaintiff's home at 204-01 104th Avenue in Queens, New York in the County of Queens, City and State of New York, Plaintiff was assaulted and battered by members of the New York City Police Department.

39. That on February 4, 2016 at approximately 3:00 p.m., at and around Plaintiff's home at 204-01 104th Avenue in Queens, New York in the County of Queens, City and State of New York, Plaintiff was assaulted and battered Defendant GRANSHAW.

40. That on February 4, 2016 at approximately 3:00 p.m., at and around Plaintiff's home at 204-01 104th Avenue in Queens, New York in the County of Queens, City and State of New York, Plaintiff was assaulted and battered Defendant DOE.

41. That at all times mentioned herein, Defendant GRANSHAW was acting under the color of authority, and in furtherance of his employer, the NYPD's, interest.

42. That at all times mentioned herein, Defendant DOE was acting under the color of authority, and in furtherance of his employer, the NYPD's, interest.

43. That the aforementioned conduct of Defendant City's employees was willful and wanton and the Defendant acted with reckless disregard for the consequences of his actions.

44. That the aforementioned conduct of Defendant GRANSHAW was willful and wanton and the Defendant acted with reckless disregard for the consequences of his actions.

45. That the aforementioned conduct of Defendant DOE was willful and wanton and the Defendant acted with reckless disregard for the consequences of his actions.

46. As a result of the foregoing, Plaintiff was thereby injured.

47. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

48. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "47" above as if fully set forth herein.

49. After Plaintiff's arrest, Defendant CITY, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against Plaintiff without probable cause and in bad faith in the Criminal Court of the City of New York, County of New York, by filing an accusatory instrument, without probable cause and in bad faith.

50. After Plaintiff's arrest, Defendant GRANSHAW did maliciously cause a criminal prosecution to be commenced against Plaintiff without probable cause and in bad faith in the Criminal Court of the City of New York, County of New York, by filing an accusatory instrument, without probable cause and in bad faith.

51. After Plaintiff's arrest, Defendant DOE did maliciously cause a criminal prosecution to be commenced against Plaintiff without probable cause and in bad faith in the Criminal Court of the City of New York, County of New York, by filing an accusatory instrument, without probable cause and in bad faith.

52. In commencing and continuing said malicious prosecution, Defendant CITY, its agents, servants and/or employees, caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

53. That in commencing and continuing said malicious prosecution, Defendant GRANSHAW caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

54. That in commencing and continuing said malicious prosecution, Defendant DOE caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

55. Plaintiff had not committed or attempted to commit any illegal act(s).

56. Plaintiff had not given Defendant CITY, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts of which he was accused.

57. Plaintiff had not given Defendant GRANSHAW probable cause to believe that he had committed the illegal acts of which he was accused.

58. Plaintiff had not given Defendant DOE probable cause to believe that he had committed the illegal acts of which he was accused.

59. Defendant CITY, its agents, servants and/or employees, knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

60. Defendant GRANSHAW knew or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

61. Defendant DOE knew or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

62. Defendant CITY, its agents, servants and/or employees, willfully and wrongfully accused Plaintiff of having violated the Penal Law of the State of New York.

63. Defendant GRANSHAW willfully and wrongfully accused Plaintiff of having violated the Penal Law of the State of New York.

64. Defendant DOE willfully and wrongfully accused Plaintiff of having violated the Penal Law of the State of New York.

65. Plaintiff appeared in Court on March 8, 2016 for arraignment on the false charge.

66. Plaintiff was directed to return to Court on April 1, 2016.

67. On or about March 31, 2016, District Attorney's Office dismissed the charge against Plaintiff prior to arraignment.

68. As a result of the aforementioned malicious prosecution, Plaintiff suffered and continues to suffer damages.

69. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

70. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

71. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "70 " above as if fully set forth herein.

72. Defendant CITY, through its agents, servants and/or employees, negligently performed its police duties and failed to use that degree of care as reasonably prudent police officers would have under similar circumstances.

73. Defendant GRANSHAW negligently performed his police duties and failed to use that degree of care as a reasonably prudent police officer would have under similar circumstances.

74. Defendant DOE negligently performed his police duties and failed to use that degree of care as a reasonably prudent police officer would have under similar circumstances.

75. As a result of Defendants' negligence, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

76. By reason of the foregoing, Plaintiff demands judgment against Defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

77. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "76" above as if fully set forth herein.

78. That the actions of Defendant CITY heretofore described constitute negligence in that Defendant CITY negligently trained or failed to train its agents, servants and/or employees, including but not limited to Defendants GRANSHAW and DOE.

79. That the actions of Defendant CITY heretofore described constitute negligence in that Defendant CITY negligently supervised or failed to supervise its agents, servants and/or employees, including but not limited to Defendants GRANSHAW and DOE.

80. The actions of Defendant CITY heretofore described constitute negligence in that Defendant CITY negligently disciplined or failed to discipline its agents, servants and/or employees, including but not limited to Defendants GRANSHAW and DOE.

81. Defendant CITY was negligent in its hiring of its agents, servants and/or employees, including but not limited to Defendants GRANSHAW and DOE, who Defendant CITY knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold their position.

82. Defendant CITY was negligent in its retention of its agents, servants and/or employees, including but not limited to Defendants GRANSHAW and DOE, who Defendant CITY knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold the position in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their position.

83. As a result of the negligence of Defendant CITY, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

84. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

85. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "84" above as if fully set forth herein.

86. On February 4, 2016 at approximately 3:00 p.m., at and around Plaintiff's home at 204-01 104th Avenue in Queens, New York in the County of Queens, City and State of New York, Defendant GRANSHAW arrested Plaintiff without a warrant and without probable cause.

87. On February 4, 2016 at approximately 3:00 p.m., at and around Plaintiff's home at 204-01 104th Avenue in Queens, New York in the County of Queens, City and State of New York, Defendant DOE arrested Plaintiff without a warrant and without probable cause.

88. That the actions taken by Defendant GRANSHAW were undertaken under color of law and would not have existed but for said Defendant's using his official power.

89. That the actions taken by Defendant DOE were undertaken under color of law and would not have existed but for said Defendant's using his official power.

90. That Defendant GRANSHAW deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

91. That Defendant DOE deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

92. That the conduct and actions of Defendant GRANSHAW acting under color of State law, in falsely arresting Plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C.

§1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

93. That the conduct and actions of Defendant DOE, acting under color of State law, in falsely arresting Plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

94. As a result of the above-mentioned constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

95. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

96. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "95" above as if fully set forth herein.

97. That Defendant GRANSHAW did maliciously cause a criminal prosecution to be commenced against Plaintiff in the Criminal Court of the City of New York, County of Queens, by filing an accusatory instrument, without probable cause and in bad faith.

98. That Defendant DOE did maliciously cause a criminal prosecution to be commenced against Plaintiff in the Criminal Court of the City of New York, County of Queens, by filing an accusatory instrument, without probable cause and in bad faith.

99. In commencing and continuing said malicious prosecution, Defendant GRANSHAW caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

100. In commencing and continuing said malicious prosecution, Defendant DOE caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

101. That Plaintiff had not committed or attempted to commit any illegal act(s).

102. That in commencing and continuing a baseless and malicious prosecution against Plaintiff, Defendant GRANSHAW violated Plaintiff's civil rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

103. That in commencing and continuing a baseless and malicious prosecution against Plaintiff, Defendant DOE violated Plaintiff's civil rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

104. That Defendant GRANSHAW deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

105. That Defendant DOE deprived Plaintiff of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

106. The conduct and actions of Defendant GRANSHAW, acting in concert and under color of State law, in detaining and imprisoning and maliciously prosecuting Plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

107. The conduct and actions of Defendant DOE, acting in concert and under color of State law, in detaining and imprisoning and maliciously prosecuting Plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts, were done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution's Fourth and Fourteen Amendments, and the Constitution of the State of New York.

108. The actions taken by Defendant GRANSHAW were undertaken under color of law and would not have existed but for said Defendant using his official power.

109. The actions taken by Defendant DOE were undertaken under color of law and would not have existed but for said Defendant using his official power.

110. As a result of the above-mentioned constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

111. By reason of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

WHEREFORE, Plaintiff JEAN MEME respectfully demands judgment against Defendants, THE CITY OF NEW YORK, BRIAN GRANSHAW (Shield 18940), and JOHN DOE, requests compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
May 2, 2017

RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway, Suite 712
New York, New York 10038


By: Matthew Flamm

VERIFICATION

MATTHEW FLAMM, an attorney admitted to practice in the Courts of New York, states, under penalties of perjury:

I am associated with the law firm of RUBERT & GROSS, P.C., attorneys of record for Plaintiff in the within action; I have read the foregoing COMPLAINT and know the contents thereof, the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

The reason this verification is being made by me and not by the Plaintiff is because the Plaintiff does not reside in the county within which we maintain our office.

The grounds of my belief as to all matters not stated upon my own information are as follows: conversations with Plaintiff and the documents contained within my file.

Dated: New York, New York
May 2, 2017



Matthew Flamm